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| 5 | 30-2024-01426948<br>Olivo vs.<br>ServiceLink<br>Services, LLC | <p>Plaintiffs Kayla Olivo and Aaron Oman’s (collectively, “Plaintiffs”) Motion for Preliminary Approval of Class Action and PAGA Settlement is <b>GRANTED ON THE CONDITION THAT</b> the following correction is made to the class notice before it is sent to the class members and aggrieved employees:</p> <p style="padding-left: 40px;">Class members and aggrieved employees may object to the settlement amount allocated to PAGA penalties. Thus, on the left column, second row of the table on Page 3 of the class notice, the phrase “Participating Class Members Can Object to the Class Settlement but not the PAGA Settlement” should instead state “Participating Class Members Can Object to the Class Settlement.”</p> <p>Plaintiffs’ counsel states that the summary table was amended to state: “Participating Class Members Can Object to the Class Settlement.” (Supp. Bokhour Dec. ¶ 16, Exs. D-E.) However, that change was not made to the notice.</p> <p>A Final Approval Hearing is set for December 14, 2026 at 1:30 p.m. All papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiffs’ attorneys to support a lodestar cross-check, detailed plaintiffs’ attorney cost breakdowns, an Administrator declaration and invoice, and plaintiffs’ declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements.</p> <p>Plaintiffs is ordered to give notice of this ruling to the LWDA and Defendant.</p> |
| 6 | 30-2024-01412038<br>Pagano vs. Yani<br>Construction Corp      | <p>Defendant Arash Firouzi’s (“Firouzi”) Demurrer to Plaintiffs Mauro Pagano and Vita Manzoli’s (collectively, “Plaintiffs”) Second Amended Complaint (“SAC”) is <b>SUSTAINED WITHOUT LEAVE TO AMEND IN PART as to the Second Cause of Action and OVERRULED IN PART as to the Seventh Cause of Action.</b> IT IS ORDERED THAT Firouzi shall file and serve an Answer to the remaining Second Amended Complaint within fourteen (14) days of this ruling.</p> <p>As a threshold matter, Plaintiffs argue that Defendant Firouzi failed to meet and confer in person, by telephone or by video conference as required by CCP § 430.41(a) and instead only sent a meet and confer letter. (Opp. at p. 10.) However, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |